

2017 Y L R 1246

[Lahore]

Before Ayesha A. Malik and Jawad Hassan, JJ

ALI RAZA---Appellant

Versus

**VICE CHANCELLOR/CHAIRMAN ADMISSION COMMITTEE and another---
Respondents**

Intra Court Appeal No.1803 of 2016, decided on 6th February, 2017.

Educational institution---

---Admission--- Entry test--- Additional marks for Hafiz-e-Quran, entitlement to---Candidate contended that his certificate of Hafiz-e-Quran was from registered institute and that he recited all the asked verses of Holy Quran before Admission Committee of the university---University contended that the candidate had failed to qualify for the grant of additional marks---Validity--- Prospectus of university revealed that the committee would conduct a structured test of the candidates who claimed to be Hafiz-e-Quran and in pursuance of which he underwent the said test---Test sheet produced by the university clearly showed that the candidate could not answer even a single question---Prospectus also mentioned that decision of the committee was to be final---Committee constituted for the purpose had declared the petitioner as failed, therefore, he could not be held to be entitled for additional marks---High Court under its constitutional jurisdiction, could not issue direction to university to add marks to the entry test---Constitutional petition was dismissed accordingly.

Muhammad Ibrahim and Muhammad Sajjad Naeem Mohal for Appellant.

Imran Muhammad Sarwar for Respondents.

Date of decision: 6th February, 2017.

JUDGMENT

JAWAD HASSAN, J.---Through this appeal, the Appellant has called in question the legality of impugned order dated 30.11.2016 passed in W.P. No.36852/2016 whereby the petition filed by the appellant was dismissed.

2. Learned counsel for the Appellant submitted that the impugned order is liable to be set aside on the ground that the learned Single Judge has not taken into consideration the fact that the Committee has ignored the certificate of Hafiz-e-Quran from registered Institute; that the Appellant recited all the asked verses of Holy Quran before the Committee but even then he has

not been bestowed with any marks out of 20 marks.

3. On the other hand learned counsel for the respondents supported the impugned order and contended that the same has been rightly passed as the Appellant has failed to qualify for the grant of additional 20 marks.

4. We have heard the arguments of both the sides and have perused the record.

5. The grievance of the Appellant is that being Hafiz-e-Quran he should have been granted 20 additional marks according to the prospectus issued by the Respondents University for the admission in MBBS. The clause (E) of the Prospectus issued by the Respondents University specifically deals with the controversy in hand. Sub-clause (ii) of the same reveals that the Committee will conduct a structured test of the candidates who claims to be Hafiz-e-Quran and in pursuance of which the Appellant was undergone to said test. The Test Sheet produced by the Respondents clearly shows that the Appellant could not answer even a single question and resulted into being not successful. Furthermore, by virtue of sub-clause (vii) of clause (E) of the Prospectus the decision of the Committee was to be final in this regard. As the Committee constituted for the purpose has declared the Appellant failed, therefore, he could not be held to be qualified for additional 20 marks.

6. From the above, we see no illegality or perversity in the impugned order which has been passed by the learned Single Judge in accordance with law by holding that the Appellant was not qualified for getting additional 20 marks. Hence, the Court cannot issue direction to the Respondents to add 20 marks on to his entry test.

7. In view of above, the instant Intra Court Appeal is hereby dismissed.

MQ/A-13/L

Appeal dismissed.